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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

APPELLANT'S REPLY BRIEF

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

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I. INTRODUCTION AND SUMMARY OF ARGUMENT

The ruling under review is the trial court's answer to Jury Question #1. After the deliberating jury named Vehicle Code sections 22107 and 21804(a) and asked to be instructed, the trial court forbade consideration, refused instruction, and classified those public statutes as "not part of the evidence." (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.) Code of Civil Procedure section 614 forbids wilful disregard of a reasonable request for law. (*Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 594 to 595.) Once the court chose to answer, Evidence Code sections 310, subdivision (a), and 451, subdivision (a), required that statutes be declared as law, not treated as unadmitted evidence. Whether that answer correctly conveyed the law is reviewed de novo. (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.) Respondent's Brief never defends that answer. It briefs charge-conference completeness, invited error, and harmlessness instead. Those substitutes do not reach the ruling.

A. The Ruling Under Review

Jury Question #1 asked:

"In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?" (App. III; RT

11, p. 7, ll. 2 to 6; Respondent's Brief (RB) 7:30 to 7:33.)

The trial court answered:

"In that matter, with regard to Jury request form number one, the Court answered: **You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions.**" (RT 11, p. 7, ll. 23 to 27; emphasis added.)

The trial court then stated:

"Further, I will point out - I don't think I needed to point this out - but neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. **They simply are not permitted to consider that as evidence in the case, period.**" (RT 11, p. 8, ll. 4 to 9; emphasis added.)

Defense Exhibit 500 numbered those same two statutes at CT 1, page 44. (App. I; CT 1, p. 44; Section II.C.1, *post.*) The negligence verdict was 9-3. (RT 11, p. 16, ll. 13 to 15; p. 17, ll. 6 to 7.) Jury Question #1 is *Soule* factor (4); application is Section II.D, *post.*

A categorical ban on the statutes the deliberating jury numbered

is *Soule* factor (4) on the face of the note. The 9-3 negligence poll is the closeness showing. Together they are the prejudice this Court must measure. (Section II.D, *post.*)

B. The Record Contradiction Respondent Does Not Reach

The appeal is the dual prohibition after Jury Question #1, justified as "not evidence, period." The opening brief joined that event, the section 614 duty, and the Evidence Code sections 310 and 451 duties the stated reason contradicts. The Respondent's Brief never defends it. The RB instead briefs, *inter alia*, charge-conference completeness (RB 9:21 to 11:11), invited error (RB 10:15 to 10:21; 13:25 to 13:28), and harmlessness (RB 12:5 to 14:14). Those substitute theories cannot support affirmance of a section 614 ruling the respondent did not write.

After the jury retired, the deliberating jury asked for a point of law. Code of Civil Procedure section 614 then required that "the information required must be given." The RB does not cite section 614. (RB 4:17 to 4:20; 9:15 to 9:20.) It cites *Agarwal*, *Finn*, *Metcalf*, and *Gregory* (RB 9:34 to 10:12), which police the pre-retirement charge. Those cases cannot authorize a post-retirement ban, and a section 614 defense cannot be supplied *sub silentio*.

The trial court stated the reason: jurors were "not permitted to consider that as evidence in the case, period." (RT 11, p. 8, ll. 4 to 9.) The RB calls the quoted reason "simply inaccurate" and

”wholly unsupported by the record” (RB 11:31 to 12:4) and cites neither section 310 nor section 451. (RB 4:17 to 4:20.) Denial of the ”not evidence” reason is a *non sequitur*, not a defense of the stated *ratio decidendi*. *Davey* cannot save a reason the respondent abandoned and that misstates the law.

The opening brief joined *Soule* factor (4) and the 9-3 poll as the prejudice showing. The RB quotes *Soule* and *Pool* but recasts Jury Question #1 as ”likely a simple point of clarification” (RB 14:7 to 14:11) and omits the 9-3 poll. (RT 11, p. 16, ll. 13 to 15; p. 17, ll. 6 to 7.) Factor (4) is the jury's own numbered request. Omitting the poll leaves the closest-case prejudice showing unbriefed. Application is Section II.D.

Jury Question #1 named Vehicle Code section 21804(a) with section 22107, but the RB quotes 21804 (RB 7:30 to 7:33) then collapses to 22107 and CACI 705. (RB 9:15 to 9:17; 10:16 to 10:21; 13:25 to 13:28.) Defense Exhibit 500 (CT 1, p. 44) put those numbers before the jury; the court then called them non-evidence; the RB recasts admission of the complaint as error. (RB 13:29 to 14:11.) Vehicle Code section 360 was given in the same session, the RB is silent on that instruction (RB 4:17 to 4:20), and the RB thus asks this Court to decide a narrower case than Jury Question #1.

At RB 6:20 to 6:22, Respondent states that Plaintiff filed a proposed-instruction list on March 31, 2025, and April 21, 2025, and that

”[t]he list requested CACI 707.” (App. II; AugCT, Exhibit A, Attachment A; Super. Ct. doc. 09580112, p. 1.) The list requests CACI 707 by number (p. 7) and CACI 710 by number (pp. 15, 17), including the range CACI 700-710 (pp. 13, 18, 20). (App. II.) Beside CACI 700 the list states ”failing to yield the right-of-way”; beside CACI 707, yield to pedestrians in marked crosswalks (09580112, p. 7). The packet contains no separately captioned CACI 705 entry. CACI 707 and CACI 710 appear by number, so RB 10:29 to 10:31 is false as to those two, including the claim that it is ”just as likely that the Court and parties discussed and agreed to the jury instructions as given.” The 700-710 range is at most an inference as to 705. Even assuming *arguendo* that the pre-deliberation list lacked a discrete CACI 705 stub, that omission could not extinguish the trial court's duty, after Jury Question #1, to declare the named statutes as law or to explain with legal accuracy why a named statute did not govern. (*Cook, supra*, 13 Cal.2d at pp. 594 to 595; Code Civ. Proc., section 614; Section II.B, *post.*) Speculation is not proof (*Estate of Teed* (1952) 112 Cal.App.2d 638, 644); extra-record facts are disregarded (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 625). The clerical-label dispute is Section IV.A.

C. The Substitute Defenses Do Not Reach the Ruling

Respondent defends three propositions the trial court never relied on: charge-conference completeness (RB 9:21 to 11:11), invited error (RB 10:15 to 10:21; 13:25 to 13:28), and harmlessness (RB

12:5 to 14:14). None is a defense of the answer actually given.

Invited error cannot attach, because the dual prohibition was formulated and delivered before the colloquy Respondent characterizes as an invitation. (RT 11, p. 7, ll. 19 to 21, 23 to 27.) The object of Plaintiff's on-record agreement was unsupervised juror consultation of uninstructed text, not a rule that the statutes could never be declared. (RT 11, p. 5, ll. 15 to 25.)

Chronology and consent-object mismatch are developed in Section III.A and Section III.B, *post*. The charge-conference authorities are answered in Section II.B, *post*. The CACI-label dispute is Section IV.A, *post*.

D. The Dual Prohibition Is a Section 614 Violation

The holding path has three sequential steps. First, Code of Civil Procedure section 614 governs a deliberating jury's request for law and requires that "the information required must be given"; it does not compel every item requested, but it forbids wilful disregard of a reasonable request. (*Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 594 to 595.) Second, once the court chose to answer, Evidence Code sections 310, subdivision (a), and 451, subdivision (a), fixed what a lawful answer could say: statutes are law the court declares, not evidence that must be admitted. Third, whether the answer "correctly convey[ed] the law" is reviewed de novo. (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.)

Section II.B develops section 614. Section II.C develops the category error. Section II.D develops prejudice. Appellant does not assert structural error.

II. ARGUMENT I: REFUSING INSTRUCTION ON REQUESTED VEHICLE CODE DUTIES AND MISCLASSIFYING STATUTES AS UN-ADMITTED EVIDENCE WAS REVERSIBLE ERROR.

A. The Trial Court's Formal Prohibition Constitutes Reversible Error.

Section I quotes the dual prohibition and the "not permitted to consider that as evidence in the case, period" reason in full. (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.) The Introduction states the holding path. This section proves why those words are error. The reversible event is the content of that answer, not a charge-conference dispute over pre-deliberation form numbers.

Plaintiff claimed an unsafe right turn by Respondent that struck Plaintiff in a crosswalk. Respondent disputed impact and path. Those competing accounts made Vehicle Code section 22107, governing roadway turns, the statutory standard of care for the turn. Jury Question #1 also named section 21804(a). Defense Exh. 500 placed those statute numbers directly before the jury, revealing the instructional gap created when the initial charge omitted

those pleaded duties. (Defense Exh. 500; CT 1, p. 44.) Defense closing referred to that complaint. (RT 10, p. 50, ll. 3 to 7.) The jury asked for the codes it had in front of it. The court answered by forbidding them as non-evidence.

The jury named two statutes. The RB asks the court to collapse the question to Vehicle Code section 22107 and a CACI 705 label. Appellant does not argue that section 21804(a) governs a street-to-street right turn from 5th Street onto Tehama. The error is that the trial court classified both numbered statutes as unadmitted evidence rather than accurately explaining why section 21804(a) did not govern, if that was the court's view, and rather than declaring section 22107 as the turning rule of decision. The trial court forbade both numbered statutes. A reply that followed the defense's requested collapse would address a different question than the question the deliberating jury submitted.

The trial court did not declare the statutes legally inapplicable after a reasoned analysis. It issued a categorical prohibition that the jury "may not consider" them as "evidence in the case, period." (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.)

B. Code of Civil Procedure Section 614 Required That the Requested Information Be Given.

Code of Civil Procedure section 614 supplies the deliberation-stage rule:

"After the jury have retired for deliberation, if there

be a disagreement between them as to any part of the testimony, or if they desire to be informed of any point of law arising in the cause, they may require the officer to conduct them into Court. Upon their being brought into Court, the information required must be given in the presence of, or after notice to, the parties or counsel.” (Code Civ. Proc., section 614; see Appellant's Supplemental Request for Judicial Notice [SRJN], Exh. E.)

Section 614 is a method and notice rule, not a mandate of particular content. The civil Supreme construction is *Nelson* (method) and *Cook* (no wilful disregard of a reasonable request), developed below.

Jury Question #1 named Vehicle Code sections 22107 and 21804(a) and explicitly asked for instruction. That is a point of law arising in the cause. A lawful answer was the content of those statutes as rules of decision, or a legally accurate explanation of why a named statute did not apply. Appellant does not contend that section 614 compelled any particular wording. A dual prohibition (no consideration, no instruction) is not that information. It is wilful disregard of a numbered request for law. (*Cook, supra*, 13 Cal.2d at pp. 594 to 595; see SRJN, Exh. E.)

That mandatory duty cannot be converted into an invited refusal by silence. Code of Civil Procedure section 647 indepen-

dently deems "giving an instruction, refusing to give an instruction, or modifying an instruction requested" excepted to. (Code Civ. Proc., section 647.) "A party may, however, challenge on appeal an erroneous instruction without objecting at trial." (*Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7.) Because the court was required to inform the deliberating jury on the named point of law, the absence of a reporter's note of a party "request" for the dual ban is not proof that Appellant invited the ban.

The named statutes are not abstractions. Vehicle Code section 22107 requires that a roadway turn be made only with reasonable safety and after an appropriate signal. Vehicle Code section 21804, subdivision (a), states a yield duty for a driver about to enter or cross a highway from public or private property or from an alley. (See SRJN, Exh. A.) CACI 401 does not contain those commands. The jury asked for those commands by number. The court banned both rather than declaring section 22107 or accurately explaining why section 21804(a) did not govern.

The following illustrates a lawful answer once the court chose to respond. It is not a new assignment of error, and it is not a claim that section 614 mandated this wording. If the court concluded section 21804(a) did not govern a street-to-street turn, the lawful path was to say so accurately, not to classify the statute as unadmitted evidence. The model below shows a declaration

of the statutes the jury numbered; it does not assert that section 21804(a) governed the turn from 5th Street onto Tehama:

”Members of the jury, in response to Question #1, you are instructed on the following governing provisions of the California Vehicle Code:

Vehicle Code section 22107: 'No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety and then only after the giving of an appropriate signal in the manner provided in this chapter in the event any other vehicle may be affected by the movement.' (See SRJN, Exh. A.)

Vehicle Code section 21804, subdivision (a): 'The driver of any vehicle about to enter or cross a highway from any public or private property, or from an alley, shall yield the right-of-way to all traffic, as defined in Section 620, approaching on the highway close enough to constitute an immediate hazard, and shall continue to yield the right-of-way to that traffic until he or she can proceed with reasonable safety.' (See SRJN, Exh. A.)

Jurors determine from the courtroom evidence whether either provision was violated, and apply those statu-

tory standards in deciding whether reasonable care was used.”

The civil Supreme construction of that duty is *Nelson* and *Cook*. *Nelson v. Southern Pacific Co.* (1937) 8 Cal.2d 648, 655, reversed a judgment after a post-retirement message by the bailiff without counsel. Section 614 requires that if the jury desires further instruction, it shall be conducted into court and ”the information desired given in the presence of or after notice to counsel.” Other methods ”go to the substance of the right of trial by jury” and are ”deemed to be prejudicial except in very exceptional circumstances.” (*Nelson, supra*, 8 Cal.2d at p. 655.) *Nelson* is the method holding. It is not a Vehicle Code holding.

Cook v. Los Angeles Railway Corp. (1939) 13 Cal.2d 591, 594 to 595, reversed after a reasonable request for law was disregarded. While section 614 ”does not compel the court to give any information which the jury may request,” ”any reasonable request relating to the rereading of instructions upon a topic which is doubtful in the minds of the jurors should not be wilfully disregarded.” (*Cook, supra*, 13 Cal.2d at pp. 594 to 595.) Jury Question #1 named Vehicle Code sections 22107 and 21804(a). That is a numbered request for named statutes. A dual prohibition is wilful disregard of that request. *Cook* was reversed.

Penal Code section 1138 is the criminal analog. *People v. Moore* (1996) 44 Cal.App.4th 1323, 1331 to 1332, restates that analog

as a duty "to clear up any instructional confusion expressed by the jury" (*People v. Gonzalez* (1990) 51 Cal.3d 1179, 1212, as quoted in *Moore*, at p. 1331) and that a court "must do more than figuratively throw up its hands and tell the jury it cannot help" (*People v. Beardslee* (1991) 53 Cal.3d 68, 97, as quoted in *Moore*, at p. 1331). *Moore* affirmed because the reread was "full and complete" on the asked point. That is not this record. The original charge omitted the named turning and yielding statutes. The dual prohibition forbade them. (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.) The civil duty is *Nelson* and *Cook*, not *Moore*. Reading CACI 401 was not an answer to Jury Question #1.

The appellate court determines the validity of a trial court's response to a jury question through a strictly structured review. The legal accuracy of the trial court's response is reviewed *de novo*. (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.) This Court examines the transcript independently to determine if the trial court correctly conveyed the law. *Flores* already cites *Eng v. Brown* (2018) 21 Cal.App.5th 675, 706, fn. 9, for the duty to give supplemental legal instruction after a jury question. *Eng* held that a party is mistaken in claiming the court was "prohibited from instructing the jury on any legal issues in response to its question." (*Eng, supra*, 21 Cal.App.5th at p. 706, fn. 9.) The *Eng* judgment was affirmed. Footnote 9 rejects a prohibition argument; it is not a section 614 reversal. Because Evidence Code sections 310 and 451 mandate that public statutes are law to be

declared by the court, not evidentiary exhibits, the trial court's premise that enacted statutes are "not part of the evidence" is factually and legally erroneous as a matter of law. A court that applies the wrong legal standard abuses its discretion. (*People v. Superior Court (Humberto S.)* (2008) 43 Cal.4th 737, 742.)

Bartosh v. Banning (1967) 251 Cal.App.2d 378, 387 to 388, confirms the civil duty after a deliberating jury asks for guidance:

"The responsibility for adequate instruction becomes particularly acute when the jury asks specific guidance. [...] We also believe that the trial court's failure after such request to specifically guide the jury with appropriate instructions on these issues resulted in reversible error." (*Bartosh v. Banning* (1967) 251 Cal.App.2d 378, 387 to 388.)

Jury Question #1 was that request. The trial court did not specifically guide the jury on the named turning and yielding duties. It forbade them. (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.)

Halada v. Venice Lake Park, Inc. (1955) 132 Cal.App.2d 788, 789 to 790, reversed a 9-to-3 verdict after a deliberation-stage refusal and held the error prejudicial as a matter of law. *Smith v. Shankman* (1962) 208 Cal.App.2d 177, 182 to 183, requires "a strict compliance" with sections 613 and 614. (*Smith, supra*, 208 Cal.App.2d at pp. 182 to 183.) A dual prohibition after Jury

Question #1 is not that compliance. Respondent never answers *Nelson*, *Cook*, *Halada*, or *Flores*.

Respondent's Pre-Deliberation Authorities Do Not Govern a Deliberation-Stage Statutory Request.

Respondent contends that *Agarwal v. Johnson* (1979) 25 Cal.3d 932, *Finn v. G.D. Searle & Co.* (1984) 35 Cal.3d 691, *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, and *Conservatorship of Gregory* (2000) 80 Cal.App.4th 514 establish that Appellant waived the right to instruction on the applicable Vehicle Code sections. These authorities govern the charge-conference phase prior to jury deliberations. They establish the burden on parties to propose complete instructions initially. However, they do not abrogate a trial court's distinct, mandatory statutory duty once a deliberating jury explicitly requests legal guidance. Respondent's authorities fail on this record for four specific reasons.

First, answering a deliberating jury's request is not a *sua sponte* action. The RB asks the court to adopt *Agarwal* for the rule that if parties fail to propose complete instructions, "the court has no duty to instruct on its own motion." (*Agarwal*, *supra*, 25 Cal.3d at pp. 950 to 951.) This rule applies to *sua sponte* instructions before deliberations. Here, the trial court was not required to act on its own motion. The deliberating jury affirmatively submitted Jury Question #1, explicitly asking if it should consider and be instructed on Vehicle Code sections 22107 and 21804(a). Once the jury made that request, answering was no

longer a discretionary or *sua sponte* act under *Agarwal*. Section 614 supplied the method and notice rule, and *Cook* forbade wilful disregard of a reasonable request. (Code Civ. Proc., section 614; *Nelson, supra*, 8 Cal.2d at p. 655; *Cook, supra*, 13 Cal.2d at pp. 594 to 595.)

Second, the statutory theory was not "unspoken." Respondent contends that *Finn* bars recovery because a trial court is not obligated "to seek out theories plaintiff might have advanced, or to articulate for him that which he has left unspoken." (*Finn, supra*, 35 Cal.3d at pp. 701 to 702.) That principle is factually inapplicable. The turning and yielding theory was never unspoken. Plaintiff pleaded Vehicle Code sections 22107 and 21804(a). The defense designated that pleading as Defense Exhibit 500 and placed it before the jury. The same theory was in the written packet: CACI 707 by number, CACI 710, and the range CACI 700-710. CACI 707 and CACI 710 are listed by number, so RB 10:29 to 10:31 is false as to those two. Even assuming *arguendo* that the packet lacked a discrete CACI 705 stub, that omission could not extinguish the section 614 duty after Jury Question #1. (*Cook, supra*, 13 Cal.2d at pp. 594 to 595; Code Civ. Proc., section 614; Section I.B, *ante*.) *Finn* does not apply to a theory pleaded, exhibited, and then numbered by the deliberating jury in Jury Question #1.

Third, the trial court issued a categorical prohibition, not

a "too general" instruction. The RB presents *Metcalf* and *Gregory* for the proposition that when a court gives an instruction that is "correct in law, but ... too general," the party must request an additional qualifying instruction. (*Metcalf, supra*, 42 Cal.4th at pp. 1130 to 1131; *Conservatorship of Gregory, supra*, 80 Cal.App.4th at p. 520.) That rule governs situations where a jury is given a legally accurate, albeit broad, framework. It has no application here. The trial court did not provide a legally correct but overly general instruction in response to Jury Question #1. Instead, the trial court issued a categorical prohibition, ordering that the jury "may not consider" the statutes (RT 11, p. 7, ll. 23 to 27) and that jurors were "not permitted to consider that as evidence in the case, period" (RT 11, p. 8, ll. 4 to 9). Instructing a jury that enacted public statutes are unadmitted non-evidence is not a "general" instruction; it is a fundamental misstatement of the law under Evidence Code sections 310 and 451.

Fourth, charge-conference deficiencies do not extinguish section 614. Even if Appellant's pretrial instruction proposals were incomplete or mislabeled under the standards of *Agarwal* and *Metcalf*, that pre-deliberation deficiency does not extinguish the trial court's independent duty during deliberations. The defense theory asks this Court to hold that a charge-conference waiver permanently nullifies Code of Civil Procedure section 614. No cited authority supports the proposition that a party's initial failure to request a specific instruction strips the trial court of

its statutory obligation to accurately declare the law after the deliberating jury specifically requests it.

Davey v. Southern Pacific Co. (1897) 116 Cal. 325, 329, does not save an unauthorized act. *Davey* permits affirmance of a ruling "itself correct in law" "merely because given for a wrong reason." (*Davey v. Southern Pacific Co.* (1897) 116 Cal. 325, 329.) It does not convert a complete refusal after a numbered statutory jury question into "information" under section 614. The trial court stated an erroneous legal premise: the statutes were "not part of the evidence," and jurors were "not permitted to consider that as evidence in the case, period." (RT 11, p. 8, ll. 4 to 9.) A court that applies the wrong legal standard abuses its discretion as a matter of law. (*Humberto S.*, *supra*, 43 Cal.4th at pp. 742, 746; *Flores*, *supra*, 60 Cal.App.5th 278.) Substitute theories (wrong CACI, invited error, no negligence per se) fail even if credited: none of them authorizes forbidding named Vehicle Code duties after the jury asked to be instructed on them.

Apply that even-if analysis here, before any remaining claim. Even if CACI 707 versus 705, the RT 11 colloquy, and the absence of a negligence-per-se instruction are all credited in the form the RB presents, none of that authorizes a categorical ban after a numbered statutory jury question. Respondent never cites section 614. A theory that never joins the statute that governs the event cannot affirm the event. Charge-conference completeness

and colloquy paraphrases, even if resolved against Appellant, still leave the trial court with a duty to answer the jury's request for law. That is why Argument I can be decided without Argument II, and why Argument II, even if lost, cannot save a ban that section 614 forbids.

C. Evidence Code Sections 310 and 451 Make the Court's Reason a Category Error, and Defense Exh. 500 Confirms the Statutes Were Already Before the Jury.

Enacted public statutes are not evidence; they are the law. (See SRJN, Exh. F.) Vehicle Code sections 22107 and 21804(a) are public statutes. Whether they were physically marked as exhibits is legally irrelevant to their status as public statutory law. Treating them as unadmitted evidence collapses the boundary section 310 draws. Evidence Code section 451, subdivision (a), requires that judicial notice "shall be taken" of this state's public statutory law. Section 614 does not require a particular CACI number. It requires that the jury's request for law be answered with law. The trial court had two lawful paths: instruct on the named statutes, or explain with legal accuracy that they did not govern the claim. Forbidding consideration because the statutes were "not part of the evidence" is neither path.

The concluding "period" confirms that the court forbade consideration rather than explaining applicability. Trial courts have discretion over how to answer a jury question. They do not have discretion to answer a request for named statutory law by declar-

ing that the statutes are not evidence and may not be considered, period. *Flores* holds that supplemental instructions "must correctly convey the law," and that review of whether the instruction was correct is de novo. (*Flores, supra*, 60 Cal.App.5th at p. 289.) A response grounded in the premise that enacted statutes are non-evidence is legally inaccurate. That de novo accuracy review rests on *Flores*. It does not rest section 614 on *Soule* at page 572.

The admission of Defense Exhibit 500 demonstrates that the jury was already presented with the statutes. The defense designated plaintiff's original complaint as Exhibit 500. (Defendant's Amended Exhibit List, AugCT, Super. Ct. doc. 09506069, pp. 1 to 3, filed Mar. 12, 2025; augmentation ordered Mar. 6, 2026.) That writing numbered Vehicle Code sections 22107 and 21804(a) at CT 1, page 44. (Section II.C.1, subsection 1, *post.*) Those are the same two numbers the deliberating jury wrote on Jury Question #1.

C.1. Even on the trial court's "evidence" premise, the turning movement, lookout, and speed were already in the record, grouped with Defense Exh. 500.

To determine whether removing the law was improper, the reviewing court evaluates the record to confirm whether substantial evidence supported instructing the jury on the requested statutes. Here, the evidentiary record was absolute.

A party is entitled to instruction on every theory supported by

substantial evidence, viewed in the light most favorable to that party. (*Soule, supra*, 8 Cal.4th at p. 572; *Ng v. Hudson* (1977) 75 Cal.App.3d 250, 254, disapproved on another ground in *Soule, supra*, 8 Cal.4th at pp. 574, 580.) Once that threshold is met, the trial court has no discretion to refuse a legally correct instruction. Substantial evidence of the turning movement, lookout, and speed is already collected in this subsection: the right turn (RT 8, p. 112, ll. 9 to 12); the lookout (RT 8, p. 134, ll. 11 to 17); and the speed (RT 8, p. 121, ll. 22 to 26). Those pins measure Vehicle Code section 22107. Because substantial evidence supported the turning movement, the trial court had no discretion to withhold that turning standard once the jury requested it, and no discretion to classify either numbered statute as unadmitted evidence rather than accurately explaining applicability.

The trial court told the deliberating jury that Vehicle Code sections 22107 and 21804(a) "were [not] part of the evidence" and that jurors were "not permitted to consider that as evidence in the case, period." (RT 11, p. 8, ll. 4 to 9.) That sentence is a category error: public statutes are law the court must declare. (Evid. Code, sections 310, subd. (a), 451, subd. (a); Section II.C, *ante*.) It is also factually false on the trial court's own stated test.

Two bodies of proof were already before the seated jury before deliberations began. First, a writing the defense itself designated: Defense Exh. 500, plaintiff's complaint, which numbered sections

22107 and 21804(a) as the driver's turning and yielding duties. (Defense Exh. 500; CT 1, p. 44.) Defense closing referred to that complaint. (RT 10, p. 50, ll. 3 to 7.) Second, sworn testimony and the defense's own closing, which proved the movement section 22107 measures: a right turn onto Tehama, a claimed lookout that saw no one, and a claimed speed of five miles per hour while turning. Section 22107 forbids turning "until such movement can be made with reasonable safety." Those commands were the turning law of the facts the jury had already heard. They were not an exhibit that failed admission. Jury Question #1 also named section 21804(a). The trial court forbade both as non-evidence rather than declaring the turning statute or accurately explaining why the yield statute did not govern.

The quotes below are the evidence. They are grouped to Defense Exh. 500 because that is the document that numbered the statutes, and because the live testimony is what made those numbers "law arising in the cause" under Code of Civil Procedure section 614.

1. The writing in evidence: Defense Exh. 500 numbered the same two statutes. Defense Exh. 500 is the complaint. That writing, at CT 1, page 44, numbered Vehicle Code sections 22107 and 21804(a) as the driver's turning and yielding duties. (App. I; Defense Exh. 500; CT 1, p. 44.)

Jury Question #1 then named those exact two numbers. The

trial court's later statement that the statutes were "not part of the evidence" cannot be reconciled with an exhibit that numbered those statutes.

2. Sworn turning testimony: the movement section 22107 measures. Investigating officer, jury seated (April 16, 2025). Officer Fernandez confirmed the intersection signs required turning vehicles to yield, and confirmed the defendant's turn direction and completion:

"Q. ... you will see a sign there that clearly states that those turning vehicles must yield to bicyclists or pedestrians. ... Do you see those? A. Yes." (RT 7, p. 115, ll. 9 to 21.)

"Q. And from the statement, did Mr. Abdelhalim turn right or left into Tehama? A. He turned right." (RT 7, p. 121, ll. 4 to 6.)

"Q. Then he completed his turn, correct? A. Correct." (RT 7, p. 153, ll. 12 to 13.)

That completed right turn, and the yield signs Officer Fernandez confirmed, are the movement Vehicle Code section 22107 measures: whether the turn could be made with reasonable safety. (RT 7, p. 115, ll. 9 to 21; p. 121, ll. 4 to 6; p. 153, ll. 12 to 13; Veh. Code, section 22107.)

That Fernandez turn-and-yield testimony is the substantial evidence that left no discretion to withhold section 22107 once Jury Question #1 named it.

Defendant on the stand, jury seated (April 17, 2025).

The 911 recording, which defendant authenticated as his voice, described the turning movement. He then testified he turned right, that it was "clear" when he turned, and that he looked in front of him and saw no one:

"Q. ... You clearly did on the audio, and said: He was turning to the right and he was boom in front of me, I just hit him, hit him with barely anything. Was that your voice also? A. That is my voice." (RT 8, p. 111, l. 23 to p. 112, l. 1.)

"Q. Do you remember which direction you were turning? A. I do remember. It was the right side -- would be on the right side." (RT 8, p. 112, ll. 9 to 12.)

"A. Because when I turned it was a clear in front of me and I heard somebody said: Help, help, help." (RT 8, p. 115, l. 28 to p. 116, l. 1.)

"Q. Prior to making your right-hand turn, did you look in front of you? A. Yes. Q. And when you looked in front of you, did you see any bicyclists, pedestrians or scooters in front of you prior to making your turn?

A. No.” (RT 8, p. 134, ll. 11 to 17.)

That last answer is the lookout the turning statute measures. It was elicited by the defense, on cross-examination, with the jury seated, before deliberations. It is evidence.

3. Sworn speed testimony: the ”reasonable safety” the same statutes require. The police report, read to Fernandez with the jury seated, assigned the **defendant** a speed of approximately five miles per hour (separate from any speed attributed to plaintiff):

”Q. It says here my client was traveling approximately five miles per hour. Is that right? A. Correct.” (RT 7, p. 153, ll. 20 to 22.)

The defendant then assigned that number to the turn itself:

”Q. What was your speed right before the collision? A. The speed? Q. Yeah. A. Five mile an hour when I turned to the right.” (RT 8, p. 121, ll. 22 to 26.)

He confirmed the number still stood:

”Q. Mr. Abdelhalim, you said you were going five miles per hour -- to us, just recently -- right before the collision. Does that still stand? A. Yes, sir.” (RT 8, p. 132, ll. 4 to 8.)

This is the sole speed evidence provided by the defendant, which he directly associated with the turning movement. Vehicle Code section 22107 asks whether that movement could be made with reasonable safety. The jury asked for the turning and yielding statutes by number because the evidence had already put the turn and the speed in front of it.

4. Closings, still with the jury seated: the defense conceded it was a turn case. Closings are advocacy (*Soule* factor (3)), not a substitute for a section 614 answer. They still confirm what the evidence was. Defense counsel told the seated jury:

”My client checked his mirrors, it was clear. He made a legal right turn.” (RT 10, p. 55, ll. 16 to 18.)

A ”legal right turn” shows that turning was in issue. The trial court later forbade the statutes that define when a right turn is legal.

Plaintiff's closing argued the same movement and a duty to stop before crossing the bike lane. (RT 10, pp. 29 to 33, 42; p. 42, ll. 12 to 14.) That argument is not a substitute for instruction. It shows the jury was being asked to decide a turn-and-yield collision without the statutes Defense Exh. 500 had numbered and without the statutes the jury later requested.

5. What this contradiction is, and what it is not. Appellant does not contend that the Vehicle Code section numbers were spoken aloud prior to deliberations. The numbers reached the jury in writing through Defense Exh. 500, and then in the jury's own note. The **facts** those numbers govern (right turn onto Tehama, claimed lookout that saw no one, claimed five miles per hour while turning) were spoken, repeatedly, while the jury was seated, on Days 7, 8, and 10. Deliberations began at the end of Day 10. (RT 10, p. 74, ll. 18 to 19.) Day 11 contains no additional turning or speed evidence. It contains the ban.

The trial court's sentence that the statutes were "not part of the evidence" therefore fails on its own terms. Defense Exh. 500 was evidence, and it numbered the statutes. The defendant's turn, lookout, and speed were evidence, and they are the facts section 22107 measures. The lawful response after Jury Question #1 was to declare that law, or to explain with legal accuracy why a named statute did not govern. The response given (no consideration, no instruction, "period") withdrew the requested rule of decision from a 9-3 verdict on the very collision the defense had described as a completed right turn.

The trial court answered that the jury "may not consider" those sections "nor will the Court instruct," because they "were [not] part of the evidence" and "are not permitted to consider that as evidence in the case, period." (RT 11, p. 7, ll. 23 to 27; p. 8,

ll. 4 to 9.) That answer is a category error under Evidence Code sections 310 and 451: statutes are law the court must declare, not writings that must be admitted. It is also factually false on the court's own premise. The numbers the court called non-evidence were already in the defense exhibit the jury had been told it had seen. Respondent contends that the pathway should be accepted (the complaint was before the jury and is the likely source of the question) and that the consequence may be abandoned. The RB asks the court to recast the designation as "admitting the complaint was error." That recasting does not defend the trial court's reason. If the complaint should not have been an exhibit, the cure was not to forbid the statutes as law after the jury asked for them. The cure, if any, was to declare the law the complaint had numbered. The designation is coherence evidence: the ban cannot be defended as protection against a theory the jury first encountered in deliberations. The exhibit pin is Defense Exh. 500; CT 1, p. 44. The complaint is not proof of liability. It is the document that put the statute numbers in front of the jury.

Vehicle Code section 360 is reinforcing only. It is not a second merits theory. It refutes any claim that Vehicle Code text was categorically unavailable during deliberations. In the exact same session, directly after barring sections 22107 and 21804(a) as "not part of the evidence," the trial court answered Jury Question #2 by supplying Vehicle Code text defining "vehicle" and, expressly, Vehicle Code section 360 defining "highway." (See SRJN, Exh.

B; RT 11, p. 8, ll. 16 to 26.) The trial court then said it was "defining something that is the word 'vehicle' for the purpose of the jury's use in this matter." (RT 11, p. 9, ll. 1 to 2.) Vehicle Code provisions were therefore not categorically unavailable as a subject of judicial guidance. Sections 22107 and 21804(a) were treated as unavailable. That comparison does not claim favoritism. It shows that the classification used to forbid the turning and yielding statutes was selective, not a neutral rule that Vehicle Code text may never be given during deliberations. Respondent never cites section 360.

D. The Categorical Ban Was Prejudicial Under *Soule* and *Pool* Given the Jury's Direct Question and the 9-3 Verdict.

Instructional error in a civil case warrants reversal where it is reasonably probable that a result more favorable to the appellant would have been reached in the absence of the error. California Constitution, article VI, section 13, provides:

"No judgment shall be set aside, or new trial granted, in any cause, on the ground of misdirection of the jury, or of the improper admission or rejection of evidence, or for any error as to any matter of pleading, or for any error as to any matter of procedure, unless, after an examination of the entire cause, including the evidence, the court shall be of the opinion that the error complained of has resulted in a miscarriage of

justice.” (Cal. Const., art. VI, section 13; *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 570 to 574.)

Justice Baxter wrote the standard this record meets:

Instructional error in a civil case is prejudicial ”where it seems probable” that the error ”prejudicially affected the verdict.” (*Soule, supra*, 8 Cal.4th at p. 580, quoting *Pool v. City of Oakland* (1986) 42 Cal.3d 1051, 1069.)

[W]hen deciding whether an error of instructional omission was prejudicial, the court must also evaluate (1) the state of the evidence, (2) the effect of other instructions, (3) the effect of counsel's arguments, and (4) any indications by the jury itself that it was misled. (*Id.* at pp. 580 to 581.)

Harmless error analysis does not excuse the trial court's failure to fulfill its statutory duty. Prejudice is the second holding, not a substitute for the independent legal-error holding in Section I. While instructional omissions are reviewed for prejudice under *Soule*, a statutorily prohibited misdirection (telling jurors they ”may not consider” the named statutes) misinstructs the jury on its core legal mandate. Paired with the jury's own request for the withheld statutes and a 9-3 verdict, that misdirection sat-

isfies the *Soule* probability test. *Pool* itself states the probability sentence: a miscarriage of justice is declared only when it is "reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error." (*Pool v. City of Oakland* (1986) 42 Cal.3d 1051, 1069.) The RB presents that standard, and quoted *Pool, supra*, 42 Cal.3d at p. 1069, for the reasonable-probability requirement. (RB at p. 9.) However, Respondent contends that *Soule* factor (4) does not apply to this record. Jury Question #1 is *Soule* factor (4): an indication by the jury itself that it required the withheld law. The deliberating jury named Vehicle Code sections 22107 and 21804(a) and asked to be instructed. The trial court forbade both. The reviewing court is not asked to speculate whether the missing duties mattered. The jury stated they did. An answer that forbids consideration does not clarify the law; it removes it. Article VI, section 13's miscarriage of justice is the same test already applied here, and withholding the requested Vehicle Code duties after Jury Question #1 is the comparison this Court must make.

The application of the *Soule* factors confirms prejudice.

First, conflict in the evidence. Liability turned on turn execution, path, and impact. Defendant testified that he was making a right-hand turn, that he looked in front of him before turning, and that he saw no one. (RT 8, p. 134, ll. 11 to 17.) The sworn

turning and speed testimony collected in Section II.C.1 is that conflict. That is a right-turn case on the defense's own testimony. The Supplemental adds one pin, and only one: the defendant authenticated a 911 recording in which he told the operator, "I barely hit him with anything" (RT 8, p. 109, ll. 3 to 5), and confirmed, "That is my voice" (RT 8, p. 111, l. 23 to p. 112, l. 1). Contested impact and path are *Soule* factor (1) material. They are not a license to deem a categorical ban harmless when the jury asked for the turning and yielding statutes by number.

Second, other instructions. CACI 401 tells jurors to use reasonable care. It does not contain Vehicle Code section 22107 or section 21804(a). A general ordinary-care charge is not the named turning statute and is not the named yield statute. Factor (2) does not cure a ban on the specific law the jury requested. (See also *Daum v. SpineCare Medical Group, Inc.* (1997) 52 Cal.App.4th 1285, 1293 to 1294, 1318.)

Third, counsel's arguments. Closings are advocacy. They cannot replace a section 614 answer. The trial court had to declare the law. Counsel cannot do that job in argument, and a ban that tells the jury not to consider the statutes strips even that advocacy of the statutory standard of care. Defense closing referred the seated jury to the complaint, the writing that numbered the withheld statutes. (RT 10, p. 50, ll. 3 to 7; Defense Exh. 500; CT 1, p. 44.) That is *Soule* factor (3): counsel argued from the

pleading that numbered the withheld statutes, while the court later forbade those statutes as non-evidence.

Fourth, the jury's own indication. Factor (4) is already supplied. The RB substitutes "clarification" for Question #1. The question, on Respondent's own paraphrase, asked whether the jury should consider named Vehicle Code sections and whether it could be instructed on them. An answer that forbids consideration does not clarify the law. It removes the law.

Closeness of the verdict is not a fifth *Soule* factor. *Soule* states four: (1) the state of the evidence, (2) the effect of other instructions, (3) the effect of counsel's arguments, and (4) any indications by the jury itself that it was misled. (*Soule, supra*, 8 Cal.4th at pp. 580 to 581.) Jury Question #1 is *Soule* factor (4).

Closeness belongs to the five-factor framework of *LeMons v. Regents of University of California* (1978) 21 Cal.3d 869, 876, as quoted in *Drury v. Ryan* (2025) 109 Cal.App.5th 1102, 1112: "(1) the degree of conflict in the evidence on critical issues [citations]; (2) whether respondent's argument to the jury may have contributed to the instruction's misleading effect [citation]; (3) whether the jury requested a rereading of the erroneous instruction [citation] or of related evidence [citation]; (4) the closeness of the jury's verdict [citation]; and (5) the effect of other instructions in remedying the error [citations]." (*LeMons, supra*, 21 Cal.3d at p. 876; *Drury, supra*, 109 Cal.App.5th at p. 1112.)

The verdict on negligence was "No." (RT 11, p. 16, ll. 13 to 15.) The poll: "Let the record reflect that nine jurors have raised their hand." (RT 11, p. 17, ll. 6 to 7.) That is a 9-3 defense verdict, the absolute civil minimum. Respondent never cites this metric. A single vote shift dictates a different result. Under *LeMons* factor (4), closeness of the verdict is a prejudice consideration. A categorical ban after the jury asked for the withheld statutes, followed by a 9-3 poll, satisfies *Pool*'s reasonable-probability test: it is reasonably probable that a result more favorable to Appellant would have been reached in the absence of the error. (*Pool, supra*, 42 Cal.3d at p. 1069.) The RB asks the court to read *Pool* at RB page 9 for the proposition that the appellant must show a reasonable probability of prejudice. (*Pool, supra*, 42 Cal.3d at p. 1069.) That citation supports Appellant. A 9-3 poll after the jury asked for the withheld law is the probability *Pool* describes. The RB quoted *Pool* as a burden and then omitted the 9-3 number.

Halada so held on a 9-to-3 poll after a deliberation-stage refusal:

"Whether the outcome or the verdict would have been any different is beside the issue. The verdict was 9 to 3. In the circumstances, the action of the trial judge must be held, as a matter of law, to have been prejudicial." (*Halada, supra*, 132 Cal.App.2d at pp. 789 to 790.)

Sesler v. Ghumman (1990) 219 Cal.App.3d 218, 226 to 227, holds

that rereading a Vehicle Code turning statute while refusing the specific instruction the jury needed was error, and that the duty to instruct "becomes particularly acute when the jury asks specific guidance." (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 226 to 227, quoting *Bartosh, supra*, 251 Cal.App.2d at p. 387.) General instructions did not cure that refusal. (*Drury, supra*, 109 Cal.App.5th at p. 1112.) Respondent contends that *Sesler* and *Drury* are distinguishable as multi-lane left-turn cases. A right-turn and yield case is not weaker when the deliberating jury asked for the statutes by number. The legal holding is about withheld turning duties after a jury signal, not about intersection geometry. Factor (4) makes this record stronger than a silent jury.

Because the trial court's instructional prohibition misstated the law under section 614 and Evidence Code sections 310 and 451, the remaining inquiry is whether Respondent's assertion of invited error bars review. As shown below, it does not.

III. ARGUMENT II: APPELLANT DID NOT INVITE OR WAIVE INSTRUCTIONAL ERROR.

Invited error never attached, for the reasons set out in Sections III.A through III.C. The elements required by *Norgart*, *Cooper*, and *Huffman* are not met on this record, so the RB's remaining preservation and harmlessness claims are insufficient. Argument II demonstrates that even if Respondent's preservation arguments

are considered, they do not bar review of the substantive errors addressed in Argument I.

Respondent asserts waiver and invited error as an affirmative bar to review. The party asserting that bar bears the burden of proving an on-record, deliberate tactical choice. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212.) Respondent's brief supplies no such citation. It asks this Court to find waiver from what was "just as likely" agreed off the record (RB 10:29 to 10:31). That sentence concedes the absence of a record. It cannot carry the burden, and it forfeits the defense.

Appellant has separately moved to disregard the extra-record passages at RB 8:8 to 8:16, 9:5 to 9:12, 10:15 to 10:21, 10:29 to 10:31, 11:6 to 11:11, 13:25 to 13:28, and 14:16 to 14:20. This reply addresses those passages on the merits.

A. The Chronology of Deliberations Defeats Invited Error as a Matter of Law.

To evaluate invited error, the sequence must be restored:

1. The initial charge omitted Vehicle Code sections 22107 and 21804(a), leaving an instructional gap regarding turning and yielding duties.
2. Defense Exh. 500 placed those statute numbers before the jury. The complaint at CT 1, page 44, declared that Defendant "violated, including but not limited to, California

Vehicle Code sections 22107 and 21804(a).” (Defense Exh. 500; CT 1, p. 44.) Defense closing referred to that complaint. (RT 10, p. 50, ll. 3 to 7.)

3. The jury submitted Question #1 asking whether it should consider those provisions and whether it could be instructed on them. (App. III; RT 11, p. 7, ll. 2 to 6; RB 7:30 to 7:33.)
4. Unreported presentation of the proposed answer to counsel, then delivery of the dual prohibition (RT 11, p. 7, ll. 19 to 21; Cal. Rules of Court, rule 8.137; RT 11, p. 11, l. 23 to p. 12, l. 13).
5. On the record, Plaintiff moved for mistrial and the parties held the Q#1 colloquy. (RT 11, p. 4, ll. 12 to 22; p. 5, ll. 8 to 25.)
6. The trial court recited on the record the already-delivered dual prohibition and stated, ”You've waived that request, sir.” (RT 11, p. 7, ll. 16 to 22 and 23 to 27.)
7. The trial court later asserted ”acquiescence.” (RT 11, p. 11, ll. 14 to 19.)
8. Plaintiff contested those labels, invoked rule 8.137, sought record reconstruction, and renewed objections and mistrial motions. (RT 11, p. 11, l. 5 to p. 14, l. 9.) The substance

of that reconstruction request is Argument III.D.

The chronological record demonstrates that invited error cannot attach as a matter of law. Respondent contends that invited error attaches from on-record statements where Appellant purportedly agreed with the trial court's response to Jury Question #1. (RT 11, p. 5, ll. 8 to 25; the RB cites the same colloquy to RT 11, p. 4.) RT 11, p. 7, ll. 19 to 21, is the court's later account of the unreported interval in which the dual prohibition was presented to counsel and delivered. The later on-record fragment is the mistrial motion and Q#1 colloquy. (RT 11, p. 4, ll. 12 to 22; p. 5, ll. 8 to 25.) The recitation at page 7 restates the already-delivered answer. (RT 11, p. 7, ll. 16 to 22 and 23 to 27.) Under California law, a party cannot legally induce or invite a judicial ruling that has already been finalized and delivered by the bench. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 403; *People v. Cooper* (1991) 53 Cal.3d 771, 831.) Consequently, Appellant's subsequent on-record statements cannot retroactively serve as the legal invitation for an erroneous ruling the trial court had already executed.

Vehicle Code section 360, given in the same session, is treated in Section II.C, *ante*. In Argument II that comparison shows only that the colloquy cannot be read as a party request that Vehicle Code text never be given.

The same chronology also defeats the RB's extra-record alterna-

tive. Respondent asks this Court to find waiver from what was "just as likely" agreed off the record (RB 10:29 to 10:31). That sentence cannot carry Respondent's burden to prove an on-record tactical choice. (*Mary M.*, *supra*, 54 Cal.3d at p. 212.)

B. Agreement to Prevent Unsupervised Juror Consultation of Uninstructed Statutory Text Is Not Consent to an Instructional Prohibition.

As a threshold matter, Code of Civil Procedure section 647 deems excepted to "giving an instruction, refusing to give an instruction, or modifying an instruction requested." (Code Civ. Proc., section 647.) Responses to questions from a deliberating jury fall within that instructional ruling. The same section further provides: "If the party, at the time when the order, ruling, action or decision is sought or made, or within a reasonable time thereafter, makes known his position thereon, by objection or otherwise, all other orders, rulings, actions or decisions are deemed to have been excepted to." (*Ibid.*) Formal, repetitive objections are unnecessary. "No objection was necessary to preserve this claim." (*Lund*, *supra*, 31 Cal.4th at p. 7.) Transcript silence, and an unreported sidebar, cannot be read as an invited refusal to instruct after a numbered jury question under section 614.

The RB asks the court to isolate Plaintiff's comments to construct an estoppel theory. On RT 11, p. 5, ll. 8 to 10, Plaintiff stated: "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." (the RB

cites the same colloquy to RT 11, p. 4.) Respondent contends that a paraphrase of those words is an open-court admission consenting to the refusal to instruct (RB 13:25 to 13:28; RB 10:15 to 10:21). The RB presents an argument that collapses two distinct concepts. Agreement to prevent unsupervised juror consultation of uninstructed statutory text is not consent to a judicial rule that those statutes could not be given as instructions.

When the trial court asked whether Plaintiff had an objection to the instruction given in response to Jury request number one, he answered that he objected to the fact the jury was accessing or requesting the sections, and that they should not have been accessing external information. (RT 11, p. 5, ll. 15 to 25.) That is a misconduct-frame diagnosis of unsupervised use of uninstructed text. It is not a request that the trial court refuse to declare the governing statutes as instructions. The mistrial motion fits the same diagnosis. Plaintiff moved for mistrial on grounds of juror misconduct and outside vehicle-code information. (RT 11, p. 4, ll. 12 to 22; RB 8:8 to 8:16.) That protests deliberation without the statutory standard of care. It does not invite a judicial rule that pleaded Vehicle Code duties could not be given as instructions.

The even-if question is one question: even if the defense's paraphrase of the transcript is accepted, does that paraphrase authorize a categorical ban on named Vehicle Code duties after a deliberating jury asks for legal guidance? The answer is no.

After Jury Question #1, section 614 supplied the method and notice rule, and *Cook* forbade wilful disregard of a reasonable request for law. (Code Civ. Proc., section 614; Section II.B, *ante*.) A party's colloquy regarding unsupervised consultation of uninstructed statutory text does not show intentional relinquishment of court-declared instruction on the named statutes. (See Section III.D, *post*.) *Bartosh* reversed even though the trial judge told the jury, "I discussed this with both counsel and they have agreed that these, they feel, would be the instructions which would cover the area that your questions cover," and then reread general negligence instructions instead of answering the numbered questions. (*Bartosh*, *supra*, 251 Cal.App.2d at p. 387.) Agreement that a general reread would cover the questions did not save that judgment. It does not save a dual prohibition here.

C. Acquiescence and Defensive Comments Do Not Constitute an Intentional Relinquishment of Rights.

Invited error applies only where a party's affirmative conduct induces the specific ruling challenged on appeal. "Where a party by his conduct induces the commission of error, he is estopped from asserting it as a ground for reversal" on appeal. (*Norgart*, *supra*, 21 Cal.4th at p. 403.) The record must show "a conscious, deliberate tactical choice between having the instruction and not having it." (*Cooper*, *supra*, 53 Cal.3d at p. 831.) *Huffman* holds that mere acquiescence is insufficient: "the invited error doctrine requires affirmative conduct demonstrating a deliberate tactical

choice on the part of the challenging party.” (*Huffman, supra*, 121 Cal.App.4th at pp. 705 to 706.) Plaintiff made no deliberate tactical choice to exclude Vehicle Code sections 22107 and 21804(a) from the legal framework. Plaintiff's RT 11 comments were defensive reactions to an existing instructional gap and an effort to address unsupervised juror consultation of uninstructed statutory text. Object mismatch reinforces the doctrine: agreement to stop unsupervised juror research is logically distinct from consenting to a judicial ban on court-declared instructions.

Judicial labels are not party stipulations. Respondent contends that waiver follows from ”You've waived that request, sir” (RT 11, p. 7, ll. 16 to 22) and the later ”acquiescence” finding (RT 11, p. 11, ll. 14 to 19; RB 9:5 to 9:12). Those are the trial court's characterizations. They do not substitute for the appellate inquiry into whether a party intentionally relinquished a known right. ”Waiver always rests upon intent. Waiver is the intentional relinquishment of a known right after knowledge of the facts.” (*City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107 to 108.) *People v. Saunders* (1993) 5 Cal.4th 580, 589 to 590, fn. 6, distinguishes waiver, the ”intentional relinquishment or abandonment of a known right,” from forfeiture, ”the failure to make the timely assertion of a right.” When the right at stake is the section 614 method and notice rule, and *Cook*'s bar on wilful disregard of a reasonable request for law, the standard for intentional relinquishment cannot be satisfied by defensive acquiescence to

an existing ruling. Plaintiff contested the labels, requested to place objections on the record regarding Jury Questions #1 and #2, invoked rule 8.137, and renewed mistrial. Under Code of Civil Procedure section 647, once the party "makes known his position thereon, by objection or otherwise," remaining orders are "deemed to have been excepted to." Once a court has ruled and cut off argument, continuous repetition is not required. "It would have been a fruitless or idle act" to interpose a further request after the court had already refused. (*City of Long Beach v. Farmers & Merchants Bank* (2000) 81 Cal.App.4th 780, 784 to 785.) A party can waive instructional issues. The claim here is narrower: this record does not show intentional relinquishment of the section 614 right to court-declared instruction on the named statutes. How the trial court constructed the waiver label from the unreported sidebar is Argument III.D.

D. The Unreported Proceedings and Plaintiff's Attempted Record Reconstruction Preclude a Finding of Waiver.

The RB asks the court to treat an on-record fragment that followed an unreported sidebar as an intentional relinquishment of the right to court-declared instruction on Vehicle Code sections 22107 and 21804(a). Waiver requires intent. "Waiver always rests upon intent. Waiver is the intentional relinquishment of a known right after knowledge of the facts." (*City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107 to 108.) Invited error requires affirmative conduct inducing the specific ruling later attacked.

(*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 403; *People v. Cooper* (1991) 53 Cal.3d 771, 831.) Acquiescence is insufficient. (*Huffman v. Interstate Brands Corp.* (2004) 121 Cal.App.4th 679, 705 to 706.)

The reporter's transcript does not contain the full discussion of Jury Questions #1 and #2. Plaintiff so stated, and invoked California Rules of Court, rule 8.137, to reconstruct the unreported proceedings. (RT 11, p. 11, l. 23 to p. 12, l. 13.) He stated that critical exchanges occurred outside the reporter's presence. (RT 11, p. 11, ll. 27 to 28; p. 12, ll. 8 to 9.) A settled statement is "a summary of the superior court proceedings approved by the superior court." (Cal. Rules of Court, rule 8.137(a).) This Court is bound by the designated record. This argument does not treat unreported dialogue as newly proven fact. The unreported sidebar is the substance Plaintiff sought to reconstruct when he invoked rule 8.137. Silence in the reporter's transcript therefore cannot prove knowing waiver of the unreported half of the colloquy.

As set out in Section I.B, *ante*, RB 10:29 to 10:31 is contradicted by AugCT, Exhibit A, Attachment A (09580112) and by RB 6:21 to 6:22 as to CACI 707 and 710, which the packet lists by number. CACI 705 is at most a 700-710 range inference, not a separately captioned stub. Even if the list lacked a discrete CACI 705 stub, that omission is not waiver of the answer to Jury Question #1.

By relying on what was "just as likely" agreed off the record, Respondent concedes that no record of waiver exists. Respondent bears the burden to prove invited error on the record (*Mary M.*, *supra*, 54 Cal.3d at p. 212). This Court should disregard RB 10:29 to 10:31.

That sentence is an appeal to the presumption of regularity: official duty is presumed to have been regularly performed, and a judgment is presumed correct on a silent record. (Evid. Code, section 664; *Denham v. Superior Court* (1970) 2 Cal.3d 557, 564.) The presumption cannot operate here. First, Code of Civil Procedure section 647 is automatic; a further objection is not required. Second, invited error is Respondent's burden on the certified record (*Mary M.*, *supra*, 54 Cal.3d at p. 212). Section 664 cannot invent an unrecorded tactical choice. Third, California Rules of Court, rule 8.137 truncation cannot be resolved against Appellant (*In re Armstrong* (1981) 126 Cal.App.3d 565, 574).

Respondent asks this Court to treat that unreported gap as proof of waiver (RB 8:8 to 8:16; 9:5 to 9:12). A party cannot be penalized on appeal for the lack of a verbatim record where the omission followed the court's failure to reconstruct an adequate record. (*Armstrong*, *supra*, 126 Cal.App.3d at p. 574; see also *People v. Gzikowski* (1982) 32 Cal.3d 580, 585, fn. 2.) Appellant invoked rule 8.137. (RT 11, p. 11, l. 23 to p. 12, l. 13.) The

trial court truncated the reconstruction. (RT 11, p. 12, l. 14 to p. 14, l. 9.) Respondent cannot convert that truncation into an on-record tactical invitation.

Consent-object mismatch is Section III.B, *ante*. The "waiver" and "acquiescence" labels are Section III.C, *ante*. Even if the defense's paraphrase of the on-record fragment is fully credited, that fragment addressed unsupervised consultation. It did not authorize the dual prohibition. The even-if analysis is Section III.E, *post*.

E. Even Crediting Respondent's Characterization of the Transcript, Mismatched Consent Objects Do Not Create Estoppel.

Even if the defense's paraphrase of Reporter's Transcript Volume 11 is fully credited *arguendo*, waiver still fails. Assume, as the RB asks, that Plaintiff agreed Jury Question #1 should be answered by stating the statutes could not be considered because they were not in the instructions. That agreement managed uninstructed material during deliberations. It was not consent to a judicial rule that those statutes could never be given as legal instructions.

After Jury Question #1, section 614 still supplied the method and notice rule, and *Cook* still forbade wilful disregard of a reasonable request for law. (Code Civ. Proc., section 614; Section II.B, *ante*.) That duty was not a *sua sponte* charge-conference act under *Agarwal*. The object of Plaintiff's agreement (preventing

unsupervised consultation of uninstructed text) is not the object of the dual prohibition. (RT 11, p. 7, ll. 23 to 27.) *Norgart* and *Cooper* require deliberate tactical inducement of the specific ruling challenged. Agreement with a procedural response to uninstructed text is not that inducement. (*Norgart, supra*, 21 Cal.4th at p. 403.) The CACI-label and "never requested" sentences are answered in Sections I.B and IV.A. They do not convert a colloquy about unsupervised research into invited error.

Even if every preservation dispute is resolved against Appellant, section 614 still required an answer after the jury named Vehicle Code sections 22107 and 21804(a). Invited error does not bar review of that refusal.

IV. ARGUMENT III: RESPONDENT'S AUXILIARY DEFENSES FAIL AS A MATTER OF LAW.

Because invited error never attached, the remaining RB claims cannot authorize the ruling actually entered. Each is answered under the even-if analysis.

A. A Pretrial Form-Number Clerical Error Does Not Abrogate the Trial Court's Duty Under Section 614.

A pretrial CACI 707 versus CACI 705 label does not nullify Code of Civil Procedure section 614 after Jury Question #1. (Section II.B, *ante*.) CACI 705 is Turning (Veh. Code, section 22107) (see

SRJN, Exh. C). Official 707 is Speed Limit; official 710 is Duties of Care for Pedestrians and Drivers in Crosswalk (see SRJN, Exh. D). Plaintiff's package sought those duties in substance (AugCT, Exhibit A, Attachment A; Super. Ct. doc. 09580112, p. 1). The 707 stub is pedestrian yield; the 710 stub is pedestrian / crosswalk duty. CACI 707 and CACI 710 appear by number. CACI 705 does not appear as a separately captioned stub; it is reached only by the requested range 700-710, which is an inference. Respondent's "never requested" sentence is therefore incorrect on the face of the writing as to 707 and 710. As to 705, the 700-710 range is an inference, not a captioned stub. Even if there was no 705 stub, *Betterton* plus *Cook* and section 614 still forbid the dual prohibition. (Section I.B, *ante*; App. II; 09580112, p. 7; pp. 15, 17; pp. 13, 18, 20.) Civil Code section 3528 prefers substance over form. Even if the pretrial CACI number were mislabeled, that clerical defect would not excuse declaring the correct legal standard. *Betterton v. Leichtling* (2002) 101 Cal.App.4th 749, 751, held that a proposed instruction, "while flawed, was a more accurate statement of the law than the instructions given by the court." (*Betterton, supra*, 101 Cal.App.4th at p. 751.) A 707-versus-705 label, if credited, is that kind of flaw, not a license to forbid Vehicle Code sections 22107 and 21804(a) after the deliberating jury named them. *Betterton* affirmed for lack of prejudice. (*Id.* at p. 757.) This record is the opposite under *Soule* factor (4) and the 9-3 negligence verdict. (Section II.D, *ante*.) After that

request, section 614 supplied the method and notice rule, and *Cook* forbade wilful disregard of the numbered request. (Code Civ. Proc., section 614; Section II.B, *ante*.)

B. The Absence of a Negligence Per Se Request Does Not Excuse the Refusal to Instruct on the Underlying Duty.

The RB presents a theory asking the court to affirm that the absence of a request for a negligence per se instruction (CACI 418) bars Plaintiff from asserting instructional error. This appeal does not challenge the denial of an evidentiary presumption; it challenges the trial court's refusal to instruct on the underlying statutory standard of care. Vehicle Code section 22107 defines the turning duty. Jury Question #1 also named section 21804(a). Evidence Code section 310 and Code of Civil Procedure section 614 required the trial court to declare those statutes as law, or to explain with legal accuracy why a named statute did not govern, when the jury explicitly requested them, regardless of whether Plaintiff concurrently sought a negligence per se presumption.

Evidence Code section 669 lets a statutory violation create a presumption of negligence in specified circumstances. It "codifies the common law doctrine of negligence per se, pursuant to which statutes and regulations may be used to establish duties and standards of care in negligence actions." (*Elsner v. Uveges* (2004) 34 Cal.4th 915, 927.) The Supreme Court affirmed the Court of Appeal. That is not a 669 reversal, and it is not a holding that

statutes are "not evidence." OSHA facts are not this case. *Daum, supra*, 52 Cal.App.4th at pp. 1293 to 1294, 1318, remains this District's analog that the enacted standard is not optional packaging. Medical facts are not this case.

Spriesterbach v. Holland (2013) 215 Cal.App.4th 255, 267, is the inverse of this record. That court declined a negligence per se instruction but "did instruct the jury regarding section 21804 and a driver's duty of care," including the statutory yield text. (*Spriesterbach, supra*, 215 Cal.App.4th at p. 267.) Missing negligence per se was then held not prejudicial, and the judgment was affirmed. (*Id.* at pp. 267 to 268, 276.) This record gave neither section 22107 nor section 21804(a). Do not collapse that holding into *Drury v. Ryan* (Section II.D, *ante*). *Drury* reversed after the statute was given and negligence per se was withheld. *Spriesterbach* affirmed after section 21804 was given and negligence per se was withheld. They are not the same packaging.

C. Respondent Asks This Court to Overlook the Trial Court's Express "Not Evidence" Rationale.

Respondent contends that the trial court did not base its ruling on the premise that the statutes were not evidence, characterizing Appellant's account as "simply inaccurate." This denial is contradicted by the trial court's express statements on the record. The trial court explicitly justified its refusal by stating: **"They simply are not permitted to consider that as evidence in the case, period."** (RT 11, p. 8, ll. 4 to 9.)

In the instance that a court adopts the defense's position, it would have to overlook the trial court's actual rationale because classifying public statutes as unadmitted evidence constitutes legal error. Under Evidence Code section 451, subdivision (a), statutes are law of which judicial notice must be taken, not evidentiary exhibits subject to admission. Because the RB asks the court to abandon the trial court's stated reasoning, the trial court's rationale is left without legal support. A reviewing court cannot affirm a legally erroneous rationale that the responding party itself abandons.

The trial court said the statutes were not "evidence" and ended with "period." (RT 11, p. 8, ll. 4 to 9.) Plaintiff said they were "not part of the instructions." (RT 11, p. 5, ll. 8 to 10; the RB cites the same colloquy to RT 11, p. 4.) The RB argues wrong CACI / plaintiff never asked, words that appear nowhere in the trial court's Q#1 rationale. Treating those three speakers as one treats Plaintiff's instruction-framed comment as consent to the trial court's evidence-framed reason.

Even if the trial court had adopted Plaintiff's "not part of the instructions" statement during colloquy, the omission cannot be the reason the omitted statutes may never be given. Answering a jury's request for instruction by stating the statutes cannot be considered because they are not currently in the instructions converts the trial court's initial omission into a permanent re-

fusal to declare the law under Code of Civil Procedure section 614. Defense Exh. 500 independently confirms that the statutes were already before the jury. (Defense Exh. 500; CT 1, p. 44.) Sustaining a midtrial evidentiary objection to a witness reading a code section does not authorize a ban when the jury later asks for that law as law.

D. General Reasonable-Care Instructions Do Not Cure the Refusal to Provide Specific Statutory Duties.

Respondent contends that omitting the specific turning and yielding instructions was harmless because the jury received CACI 401, which establishes a general reasonable-care standard. CACI 401 states a general standard; it does not contain the duties the jury numbered. CACI 401 defines negligence in the abstract. Vehicle Code section 22107 imposes a specific legal duty not to turn "until such movement can be made with reasonable safety."

Instructing on general negligence principles does not cure the erroneous omission of specific statutory traffic standards. (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 226 to 227; *Blythe v. City & County of San Francisco* (1947) 83 Cal.App.2d 125, 132 to 134.) Statutory duties alter the inquiry. A juror applying CACI 401 evaluates subjective reasonableness. A juror applying Vehicle Code section 22107 must determine whether the turn was made only after the movement could be made with reasonable safety.

Daum v. SpineCare Medical Group, Inc. (1997) 52 Cal.App.4th

1285, 1293 to 1294, 1318 to 1319, reversed a defense verdict on that principle: when enacted law supplies the duty, a general reasonable-care charge does not replace it. CACI 401 is that general charge. Vehicle Code section 22107 is the enacted turning duty the jury numbered. (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9; SRJN, Exhs. G, A.)

CACI No. 401 Standard (SRJN, Exh. G)	Veh. Code section 22107 (SRJN, Exh. A)
"Negligence is the failure to use reasonable care to prevent harm to oneself or to others." "A person is negligent if that person does something that a reasonably careful person would not do in the same situation or fails to do something that a reasonably careful person would do in the same situation." Legal Test: Subjective, amorphous reasonableness in the abstract.	"No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety and then only after the giving of an appropriate signal in the manner provided in this chapter in the event any other vehicle may be affected by the movement." Legal Test: Specific statutory safety and signaling conditions precedent to turning.

Respondent's CACI 401 equivalence theory draws on two authorities that appear in SRJN Exhibit C's Sources and Authority for CACI 705. Neither helps.

Butigan v. Yellow Cab Co. (1958) 49 Cal.2d 652, 656, construed the turning statute after it had been given. The Supreme Court held that the provision "does not require the driver to know that a turn can be made with safety but only that he must exercise reasonable care, and whether such care has been exercised is nor-

mally a question of fact.” (*Butigan, supra*, 49 Cal.2d at p. 656.) That gloss assumes the statute is before the jury. It does not authorize withholding the statute.

Lewis v. Franklin (1958) 161 Cal.App.2d 177, 184, likewise concerns the instruction that must follow a reading of the turning statute: ”An instruction to a jury concerning Vehicle Code, section 544 [now 22107] must make it clear that the driver who is about to turn must exercise such care as would a reasonably prudent man under similar circumstances, no more and no less.” (*Lewis, supra*, 161 Cal.App.2d at p. 184.) *Lewis* addresses the gloss read after section 22107 is given. It does not authorize a court to refuse the statute itself.

The Judicial Council's Directions for Use for CACI 705 confirm that sequence. An instruction on CACI 705 ”should be given only if the jury is instructed on Vehicle Code section 22107” and ”should be read after that section has been given.” (SRJN, Exh. C; *Anderson v. Latimer* (1985) 166 Cal.App.3d 667, 672 to 673.) Statute first; CACI 705 second. Those directions refute Respondent's premise that general negligence instructions can replace the statute CACI 705 cannot even be read without. Respondent's theory inverts that order: it treats CACI 401 as a substitute for the statute, and treats *Butigan* and *Lewis* as if they licensed the omission of section 22107. They do not. Both cases concern how to gloss the statute after it is read. The trial court never read it.

Jury Question #1 asked for it. The dual prohibition forbade it. (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.)

As established in *Sesler*, rereading a Vehicle Code turning statute while refusing the specific instruction the jury needed was error. The duty to instruct "becomes particularly acute when the jury asks specific guidance." (*Sesler, supra*, 219 Cal.App.3d at p. 226, quoting *Bartosh, supra*, 251 Cal.App.2d at p. 387.) A general reasonable-care instruction does not cure that refusal. Jury Question #1 proves that the general instruction was insufficient for the jury's deliberations. Under *Cook*, the trial court could not wilfully disregard that numbered request by relying on a previously given, generalized instruction. Closings are advocacy, not judicial declaration of law. (*Sesler, supra*; see also *Drury*, cited in Section II.D.)

E. Sharply Contested Liability Evidence and a 9-3 Verdict Establish Reversible Prejudice.

Even if defense testimony about low speed, no felt impact, and no damage is credited at its strongest, that is *Soule* factor (1). It does not erase factor (4) or the 9-3 poll in Section II.D. Even if CACI 401 was given, even if closings mentioned careful turning, and even if defense evidence was contested and strong, none of that authorizes declaring harmless a categorical ban on the specific statutes the jury asked for by number.

V. CONCLUSION AND RELIEF REQUESTED

The defense asks the court to bypass the dispositive issue in this appeal. The reversible event is the trial court's answer to Jury Question #1: after the deliberating jury asked whether it should consider Vehicle Code sections 22107 and 21804(a) and be instructed on them, the trial court forbade consideration, refused instruction, and grounded that prohibition in the legally erroneous premise that those statutes were "not permitted to consider that as evidence in the case, period." (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.)

Code of Civil Procedure section 614 supplies the governing method and notice rule: when deliberating jurors "desire to be informed of any point of law arising in the cause," they are to be brought into court and informed in the presence of, or after notice to, the parties. (Code Civ. Proc., section 614; *Nelson, supra*, 8 Cal.2d at p. 655.) *Cook* forbids wilful disregard of a reasonable request. (*Cook, supra*, 13 Cal.2d at pp. 594 to 595.) *Moore* remains this District's Penal Code section 1138 analog; it was affirmed because the reread was full and complete. (*People v. Moore* (1996) 44 Cal.App.4th 1323, 1331 to 1332.) That is not this record. The RB asks the court to affirm without citing section 614; that defense cannot be supplied *sub silentio*. It asks the court to overlook the stated *ratio decidendi* (the "not evidence" reason). It asks the court to ignore *Soule* factor (4) and the 9-3 poll. (Section II.D, *ante*.) Instead, Respondent contends that charge-conference

waiver theories negate that duty. (Section II.B, *ante.*)

The RB presents arguments that are therefore insufficient as a matter of law to support affirmance of the instructional ruling actually entered. Affirmance on this record would require the Court either: (1) to adopt the trial court's "not evidence" premise, which constitutes a category error under Evidence Code sections 310 and 451; (2) to substitute a charge-conference waiver theory that cannot lawfully authorize a post-retirement prohibition in response to a numbered statutory jury question; or (3) to construct an unbriefed Code of Civil Procedure section 614 defense that Respondent declined to brief. Each path is legally unavailable.

Appellant claims instructional error plus *Soule* prejudice. (Section II.D, *ante.*) Defense Exh. 500 confirms that the jury asked for codes already placed before it. (App. I; CT 1, p. 44; Section II.C.1, *ante.*)

Reversal is required because the prohibition after the jury's request was a miscarriage of justice under California Constitution, article VI, section 13, as shown by Jury Question #1 and the 9-3 poll. (Section II.D, *ante.*)

For the foregoing reasons, Appellant Franciscus Dylan Rosario respectfully requests that the judgment be reversed and the matter remanded for a new trial.

Respectfully submitted,

DATED: August 20, 2026



/s/

Franciscus Dylan Rosario

Plaintiff and Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

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**CERTIFICATE OF COMPLIANCE (CAL. RULES
OF COURT, RULES 8.204(C)(1), 8.204(B), AND
8.74)**

I certify that this brief contains approximately **13955** words, excluding the cover page, table of contents, table of authorities, the signature block, this certificate, and any attachment under California Rules of Court, rule 8.204(d), as counted by the word-processing program used to generate this brief. This brief complies with the word limit of California Rules of Court, rule 8.204(c)(1) (14,000 words for a brief produced on a computer).

I further certify that this brief complies with the form requirements of California Rules of Court, rules 8.204(b) and 8.74, including: 14-point type in the body; line spacing of 1.5; left and

right margins of 1.5 inches; top and bottom margins of 1 inch; at least 13-point type in tables; consecutive Arabic page numbering beginning with the cover as page 1; electronic bookmarks; and an attachment under rule 8.204(d) of not more than 10 pages.

DATED: August 20, 2026



/s/

Franciscus Dylan Rosario
Plaintiff and Appellant in Pro Per
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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

APPENDIX

Attachment under California Rules of Court, rule 8.204(d)

Notice basis: California Rules of Court, rule 8.204(d) (not more than 10 pages of copies of exhibits or other parts of the record).

This combined appendix contains:

- Appendix I: Defense Exh. 500 / Clerk's Transcript volume 1, page 44.
- Appendix II: Augmented Clerk's Transcript, Exhibit A, Superior Court document 09580112, pages 1, 7, 13, 15, 17, and 20.
- Appendix III: Augmented Clerk's Transcript, Superior Court document 09577565, page 2.

The next page is the Index of Appendix. Overlay stamps on the record pages that follow the index identify Appendix I, II, or III. Page numbers remain consecutive Arabic from the cover of this brief.

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INDEX OF APPENDIX

Attachment under California Rules of Court, rule 8.204(d)

Page numbers remain consecutive Arabic from the cover of this brief. This index is one page of the rule 8.204(d) attachment (cover, this index, and eight overlay record pages; not more than 10 pages).

Item	Description	Page
Appendix I	Defense Exh. 500 / Clerk's Transcript volume 1, page 44.	71
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Appendix III	Augmented Clerk's Transcript, Superior Court document 09577565, page 2.	78

SHORT TITLE: Rosario v. Abdelhalim, et al.

CASE NUMBER:

Second
(number)**CAUSE OF ACTION—General Negligence**Page 5ATTACHMENT TO ☒ Complaint ☐ Cross - Complaint

(Use a separate cause of action form for each cause of action.)

GN-1. Plaintiff (name): Franciscus Dylan Rosario

alleges that defendant (name): Subhi Abdelhalim, individually, and dba Sonoma Liquor

☒ Does 1 to 20

was the legal (proximate) cause of damages to plaintiff. By the following acts or omissions to act, defendant negligently caused the damage to plaintiff

on (date): February 4, 2021

at (place): Intersection of 5th Street and Tehama Street, San Francisco County, California

(description of reasons for liability):

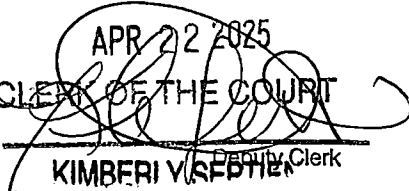
1. Plaintiff re-alleges all allegations set forth prior and incorporates them herein by reference as though set forth herein.
2. Plaintiff Franciscus Dylan Rosario was riding a scooter northbound on 5th St. in the City/County of San Francisco, State of California. Defendant Abdelhalim and/or DOES 1-20 were traveling southbound 5th St. and attempted a right turn onto Tehama St., directly into the path of Plaintiff, striking Plaintiff and knocking him to the ground. Plaintiff was able to roll from the path of the box truck to avoid being run over by the vehicle. As a result, Plaintiff suffered damages requiring medical attention. Upon information and belief, Defendant Abdelhalim and/or DOES 1-20 did not see Plaintiff before the collision.
3. At the time of the subject incident, Defendant Abdelhalim and DOES 1-20 were driving within the course and scope of their employment with Defendant Sonoma Liquor, which is vicariously liable for the conduct of its employees that caused harm to Plaintiff Rosario.
4. Defendant Abdelhalim and/or DOES 1-20, in the course and scope of their employment with Sonoma Liquor, violated, including but not limited to, California Vehicle Code sections 22107 and 21804(a), which places a legal duty on the driver of a vehicle to yield the right-of-way to all traffic and exercise due care for the safety of anyone. Defendant Abdelhalim and/or DOES 1-20 failed to exercise due care for the safety of Plaintiff Rosario who was on a scooter at all relevant times, violating California Vehicle Code sections 22107 and 21804(a).
5. As a direct and proximate result of Defendant Abdelhalim and or DOES 1-20's violation of sections 22107 and 21804(a), Plaintiff suffered special and general damages in an amount to be determined at trial.
6. Plaintiff's injuries resulted from an incident of the kind that sections 22107 and 21804(a) were designed and adopted to prevent.
7. Plaintiff belongs to the class of persons that sections 22107 and 21804(a) were designed to protect.
8. Plaintiff reserves the right to identify more statutes, regulations, and/or ordinances that Defendants may have violated.

FILED
Superior Court of California
County of San Francisco

APR 22 2025

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

BY:


KIMBERLY SEPTIEN
Deputy Clerk

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

SUBMISSIONS BY PLAINTIFF
RECEIVED BY THE COURT

On March 31st, the Court received Attachment A. This document titled: Plaintiff's Proposed Jury Instructions was submitted to the Court by plaintiff via email. These proposed jury instructions were resubmitted to the Court on April 21, 2025, for the Court's consideration.

On April 19, 2025, the Court received Attachment B via email: Plaintiff's proposed verdict form.


KIMBERLY SEPTIEN
Deputy Clerk

pecially near pedestrians.

CACI 700 – Vehicular Basic Standard of Care:

- Drivers must use reasonable care to avoid harming others on public roadways;
- Defendant breached this duty by failing to yield the right-of-way.

CACI 707 – Duty of Driver to Pedestrians:

- Explicit duty of drivers to yield to pedestrians within marked crosswalks.

IV. PLAINTIFF’S PROPOSED JURY INSTRUCTION

HIT-AND-RUN AND DRIVER’S DUTY TO PROVIDE ASSISTANCE

CACI No. 721 - Driver’s Duty After Accident—Veh. Code, §§ 20001, 20003, 20004.

Under California law, a driver involved in an accident resulting in injury to another person is required to comply immediately with specific legal duties at the scene of the collision. These duties include the following:

1. Stop Immediately:

The driver must stop at the scene of the accident and remain there until having fulfilled the obligations imposed by law.

2. Provide Reasonable Assistance:

The driver must provide reasonable assistance to any injured person, including arranging or providing transportation to a hospital or medical facility if necessary or requested by the injured party.

3. Exchange Information:

The driver is required to provide accurate personal identification, including their full name, current address, driver’s license information, vehicle registration number, and insurance policy details to the injured party and authorities at the scene of the accident.

4. Report to Authorities:

The driver must promptly and accurately report the collision to local law enforcement authorities.

CACI Nos. 100–107 (General Duty of Jury), 204 (Spoliation), 400–406 (Negligence and Causation), 430 (Substantial Factor), 700–710 (Motor Vehicle Duties), 3920–3929 (Personal Injury Damages), 5000–5009 (Pedestrian Cases and Deliberations), and applicable insurer-related instructions (e.g., 2330–2337).

Plaintiff Evidence, Testimony, and Procedural Context:

1. Evaluation of Plaintiff’s Evidence in Absence of Expert Testimony

Due to procedural limitations imposed by the Defendant, the Plaintiff was unable to present expert medical testimony.

Jurors may still assess Plaintiff’s injuries using:

- Medical records received into evidence,
- Testimony from Plaintiff and other lay witnesses,
- Their own reason, experience, and common sense.

CACI 5003 – Use of Common Sense; Evaluation of Lay Testimony

2. Evaluation of a Self-Represented Plaintiff

A person has the right to represent themselves. You must not consider the Plaintiff’s lack of legal training or courtroom formality against them.

The case should be evaluated solely on the merits, evidence, and law.

Judicial fairness principles; See also CACI 107 – Credibility of Witnesses

3. Consideration of Plaintiff’s Medical Condition

If you find that Plaintiff suffers from neurological injuries affecting speech, comprehension, or ability to present the case, you must consider this with understanding and fairness.

Do not discredit the Plaintiff’s testimony solely due to communication difficulties.

CACI 3928 – Effect of Preexisting Condition or Disability; CACI 5003 – Common Sense Assessment

1 8. Deprivation of Medical Testimony and Records

2 If the Defendant obstructed or caused delays in obtaining treating physician depo-
3 sitions or records, and this disadvantaged Plaintiff, you may consider the impact
4 this had on Plaintiff's case.

5 **CACI 204 – Suppression of Evidence**

6
7 9. Reliability of Official Records

8 You may consider police reports, hospital records, and 911 recordings as reliable
9 unless there is credible reason to doubt their accuracy.

10 Conflicts between these and witness accounts may impact your credibility findings.

11 **CACI 5003 – Use of Common Sense; Evid. Code § 1280**

12
13 10. Community Standards and Duty of Care

14 Drivers owe a duty of care to pedestrians.

15 You may consider whether Defendant's actions fell below that standard, especially
16 in busy pedestrian zones.

17 **CACI 400 – Basic Duty of Care, 401 – Breach of Duty, 700 – Basic Standard**
18 **of Care for Drivers, 710 – Duty to Pedestrians**

19
20 11. Consideration of Punitive Damages

21 If Defendant acted with oppression, fraud, or malice—such as lying, hiding evi-
22 dence, or showing reckless disregard—you may consider whether punitive dam-
23 ages are warranted.

24 **CACI 3940 – Punitive Damages (Individual), 3942 – Reckless Indifference**

25
26 12. Empowerment of the Jury

27 You are the sole judges of the facts.

28 You are empowered to ensure fairness and justice by applying the law to the facts

1
2 17. Role of Insurance Companies in Delayed Recovery

3 If the insurer failed to investigate in a timely manner or denied the claim wrong-
4 fully, contributing to ongoing hardship, this may be relevant to your damages de-
5 termination.

6 **CACI 2331 – Bad Faith; Insurance Code § 790.03(h)**

7
8 18. Psychological and Emotional Impact of Self-Advocacy

9 You may consider added emotional stress caused by Plaintiff's need to self-represent
10 under adverse conditions as part of non-economic damages.

11 **CACI 3905C – Emotional Distress; CACI 3920 – Pain and Suffering**

12
13 19. Denial of Criminal Complaint and Institutional Indifference

14 You may consider whether law enforcement ignored Plaintiff's criminal complaint
15 or evidence, and whether that inaction caused emotional harm or delayed civil re-
16 dress.

17
18 20. Community Safety and Defendant's Conduct

19 Consider whether the Defendant's driving behavior showed disregard for pedes-
20 trian safety in a high-risk zone.

21 **CACI 401 – Breach of Duty; 710 – Pedestrian Safety**

22
23 21. Role of the Jury as Voice of the Community

24 As jurors, you safeguard community standards of care and justice.

25 Your verdict reflects the values of fairness, accountability, and safety.

26 **CACI 100 – Role of the Jury**

27
28 22. Summary of Duty to Evaluate Fairly

CACI 3940 – Punitive Damages (Individual Defendants); CACI 3942 – Reckless Indifference to Rights of Others

28. Affirmation of Community Duty of Care

Drivers, business owners, and insurance companies owe duties to the public.

Their actions must reflect the safety, fairness, and responsibility expected by the community.

You may consider whether Defendant or related parties violated that duty and caused harm.

CACI 400 – Duty of Care; CACI 401 – Breach of Duty; CACI 700–710 – Duties of Drivers and Owners

29. Scrutiny of Defense Tactics and Distractions

You may consider whether the Defendant attempted to distract from direct evidence by using irrelevant arguments or procedural tactics.

Your verdict must be based solely on the admitted trial evidence, not distractions or unsupported claims.

Negligent or reckless conduct must be held accountable under the law.

CACI 100 – Duty of the Jury; CACI 204 – Suppression or Fabrication of Evidence

PLAINTIFF'S REQUEST FOR SPECIAL JURY INSTRUCTIONS (Part III)

Lay Witness Testimony and Use of Demonstrative Exhibits

To be read in conjunction with CACI Nos. 107, 219, 220, 221, 222, 223, 5003, 5006, and applicable provisions of the Evidence Code, including §§ 210, 800–803.

30. Evaluation of Lay Witness Testimony

Testimony from non-expert (lay) witnesses may be considered in evaluating the

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

JURY REQUEST FORM # 1

WE, the Jury in the above-entitled action, request the following:

In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror

Douglas M Young

COURT Response:

You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions.

This 23rd day of April, 2025

Time: 10:37 A.M.

Hon. Garrett L. Wong
Judge of the Superior Court

PROOF OF SERVICE

I, Franciscus Dylan Rosario, declare:

I am the appellant in this action and appear in propria persona.

I am over the age of 18 years. My residence address is:

7624 Melody

ROHNERT PARK, CA 94928

On August 20, 2026, I served the foregoing document described as:

APPELLANT’S REPLY BRIEF, including the attachment under California Rules of Court, rule 8.204(d) (combined appendix cover, Index of Appendix, and eight pages of copies of exhibits or other parts of the record),

on the interested parties in this action as follows:

BY ELECTRONIC SERVICE (TRUEFILING):

Pursuant to California Rules of Court, rules 8.71 and 8.78, I caused the document to be electronically served through TrueFiling to the following registered counsel:

Rebekah A. Morrissey, Esq.

KOYAMA & COSTELLO

P.O. Box 24508

Oakland, CA 94623-1508

Attorneys for Defendant and Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor

**BY FIRST-CLASS MAIL (CRC 8.44(b); CRC 8.212(c)(1);
SUPERIOR COURT CLERK):**

I placed a true copy thereof enclosed in a sealed envelope with postage thereon fully prepaid in the United States mail at Rohnert Park, California, addressed as follows:

Clerk of the Court
San Francisco County Superior Court
400 McAllister Street
San Francisco, CA 94102
for delivery to Hon. Garrett L. Wong

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 20, 2026, at Rohnert Park, California.



/s/
Franciscus Dylan Rosario
Appellant and Declarant
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM